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**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF ARIZONA**

ELIJAH MCCLURG, on behalf of himself,)
and as the Personal Representative of the)
Estate of David Wayne McClurg, and)
CINDY MCCLURG, the Parent Guardian)
of L. MCCLURG, a minor,)

Plaintiffs,

v.)

MARICOPA COUNTY, a public entity;)
MARICOPA COUNTY SHERIFF'S)
OFFICE, a division of Maricopa County;)
JOSEPH ARPAIO, Sheriff of Maricopa)
County,)

Defendants.)

Case No. CV 09-01684 PHX MHB

**SEPARATE STATEMENT OF
FACTS IN SUPPORT OF
PLAINTIFFS' RESPONSE TO
DEFENDANTS' MOTION FOR
SUMMARY JUDGMENT**

(Assigned to the Honorable
Michelle H. Burns, Magistrate Judge)

Plaintiffs, by and through counsel, submit this Separate Statement Of Facts in support of their response to the Motions For Summary Judgment filed by Defendant Maricopa County on January 10, 2012 (Dkt #145) and Defendant Sheriff Joseph Arpaio (hereinafter the "Sheriff") on January 12, 2012 (Dkt #147), pursuant to Rule 56.1, Local Rules of Civil Procedure.

PLAINTIFFS' SEPARATE STATEMENT OF FACTS

1
2
3 1. This case arises from the facts and circumstances surrounding the arrest of
4 David Wayne McClurg ("McClurg") based on an outstanding bench warrant for failure to
5 appear in Maricopa County at a court hearing regarding a 2004 arrest for allegedly driving
6 while under the influence. *See* Yavapai County records.

7 2. In July of 2006, David Wayne McClurg underwent a thorough nuclear stress
8 test at Yavapai Medical Center. This test revealed no serious heart disease. *See* Yavapai
9 County records.

10 3. On October 17, 2007, the Yavapai County Sheriff's Office ("YCSO")
11 arrested McClurg, who had an outstanding bench warrant for failure to appear in Maricopa
12 County. *See* Yavapai County records.

13 4. YCSO conducted a medical screening of McClurg on October 17, 2007. The
14 attending nurse at YCSO discovered that McClurg had an extremely high blood pressure
15 (232/112), and was complaining of a severe headache and felt nauseated. *See* Yavapai
16 County records.

17 5. McClurg was taken to the East Campus of Yavapai Regional Medical Center
18 Emergency Room for further diagnosis and treatment. Exhibit A, MC0013-15; Yavapai
19 Regional Medical Center Records.

20 6. The referral of McClurg to care by medical doctors in Yavapai County took
21 less than one hour from his booking to his being seen by a medical doctor. Exhibit B,
22 MC0043, Yavapai County Detention Intake records; MC0012, Yavapai Regional Medical
23 Center Form. The medical screening conducted by the Yavapai County physician
24 diagnosed conditions requiring special medical care regarding hypertension.

25 7. McClurg's records from the Yavapai County Sheriff's Office reflect they
26 gave the Maricopa County Sheriff's Office a copy of McClurg's medical records indicating

1 his prescribed medicines. Maricopa County Correctional Health Services ("CHS") records
2 indicated they were aware of his blood pressure problem.

3 8. The Maricopa County Intake Form for McClurg dated October 29, 2007 lists
4 hypertension, but not coronary disease. Exhibit C, CHS 0001-0005, Maricopa County
5 Correctional Health Records. McClurg exhibited obvious symptoms of peripheral vascular
6 disease, but not heart disease upon his arrival at Maricopa County jails.

7 9. McClurg did not know in 2007 that he had Leriche's Syndrome or diabetes,
8 nor did he have any reason to know that he suffered from those conditions. McClurg's diet
9 and living conditions prevented him from having any issues that would have caused him
10 any concern. No evidence has been produced to establish that McClurg ever lied about his
11 medical conditions.

12 10. McClurg was not provided with any special diet consistent with his medical
13 conditions, which were presented to Yavapai County medical personnel and upon his
14 admission to Maricopa County jail. Exhibit D, CHS0030-32, Maricopa County
15 Correctional Health Records.

16 11. At the Maricopa County jails, the food which McClurg ate was prepared in
17 such a manner so as to be as inexpensive and unpalatable as possible. Further, this policy
18 and practice by the Sheriff and Maricopa County was done for political and improper
19 "grandstanding" purposes. The food served at the Maricopa County jail could not have
20 been more inappropriate for a Type II Diabetic, or one prone to become so, or one with
21 diabetic symptomology, as was clearly the case with McClurg.

22 12. The contrast between the attention and treatment, both medical and
23 otherwise, which McClurg initially received by Yavapai County and which he received, or
24 failed to receive, from Maricopa County caused McClurg's extended and painful suffering
25 and ultimate death, facts that are clearly evident from the medical records themselves. *See*
26 "Maricopa County Medical Records," attached as Exhibit 1 to Defendant Maricopa

1 County's Separate Statement of Facts in Support of its Motion for Summary Judgment
2 (Dkt # 146).

3 13. McClurg was initially booked on October 23, 2007 by Maricopa County
4 deputies. The referral of McClurg to any specialized physician did not occur until
5 December 11, 2007, some seven weeks later. Exhibit E, MC0035 *et seq.*, Maricopa County
6 Arrest Booking Records and Yavapai Patient Release Records.

7 14. McClurg exhibited medical conditions in late October of 2007 which were
8 consistent with later diagnoses made by McClurg's treating physicians at Maricopa County
9 Medical Center in December of 2007. Exhibit F, CHS0010-16, 118, Correctional Health
10 Services Records and Maricopa County Diagnoses.

11 15. Upon the initial screening at 4th Avenue jail in Maricopa County, it was
12 obvious that McClurg was, in fact, in need of special medical attention, but the screeners
13 failed or refused to take appropriate action. The screening provided at the 4th Avenue Jail
14 facility was so "cursory" and limited, and performed by person(s) with such limited
15 training and skill, that no meaningful health screening of McClurg occurred. *See* Exhibit E,
16 *supra*.

17 16. On October 29, 2007, McClurg was seen by a Physician's Assistant ("CHS
18 PA") for leg numbness, cramping, tingling in his arms and fingers, and feeling nauseated.
19 However, no appropriate action or referral for proper medical care and treatment occurred.
20 Exhibit G, CHS0017-21, Maricopa County medical Progress Notes; *see also* CHS0029. An
21 October 29, 2007 note provided to medical personnel at the 4th Avenue jail states: "no
22 known heart disease; discussed leg pain." At that time, McClurg was "experiencing leg
23 numbness, cramping and tingling in his arms and fingers ..."

24 17. The Sheriff, acting through his agents and employees, determined that
25 McClurg was a minimal risk prisoner. However, rather than house McClurg where he
26 could be assigned a bunk with a mattress, the Sheriff made the unwarranted and

1 indefensible decision that McClurg would be housed in overcrowded conditions at the
2 Durango Jail Facility ("Durango"), pending resolution of his 2004 misdemeanor criminal
3 case. *See* Maricopa County Records; *see also* Affidavit of Steven Bakos in Support of
4 Plaintiffs' Response to Defendants' Motions for Summary Judgment ("Bakos Affidavit").
5 This assignment was inappropriate for a low-risk pre-trial detainee like McClurg.

6 18. At Durango, McClurg had no access to a place where he could even sit or
7 sleep in his cell, other than what is called a "boat" on the floor of a cell, while other
8 inmates in the same cell and tier were provided furnishings which at least allowed for
9 flexing, moving, stretching activities, and a place to sit. *See* Bakos Affidavit.

10 19. The Sheriff's placement and housing of McClurg without bunk or mattress,
11 instead, offering only the "boat" on the floor of his cell for all his daily activities, resulted
12 in McClurg becoming totally bedfast and completely immobile. *See* Bakos Affidavit.

13 20. McClurg was not even able to get out of the "boat" after living in this
14 condition for three weeks, and he lost his ability to ambulate. *See* Maricopa County
15 Records; Bakos Affidavit. These exact same jail conditions have been determined by this
16 Court to be *per se* unconstitutional. *See Graves v. Arpaio*, 2008 WL 4699770, at *14 (D.
17 Ariz. Oct. 22, 2008). Here, the clearly foreseeable consequences of these horrific and
18 punishing conditions imposed on McClurg could not have been worse.

19 21. McClurg's feet became swollen and blackened, and only after he could not
20 walk was he given a wheelchair; yet, still he was denied adequate medical care. The
21 persons attending McClurg at Durango provided him no care other than just a wheelchair
22 to get to "medical." *See* Maricopa County Medical Records.

23 22. The Defendants had a deliberate policy of ignoring medical complaints,
24 denying care and/or delaying response to McClurg's medical needs. Further, there were
25 policies and systems in place that intentionally would not and did not facilitate prompt and
26 proper medical treatment for McClurg.

1 23. Grievances by prisoners or detainees were discouraged by the Sheriff,
2 himself, and CHS, and persons requesting medical care or complaining about the lack of it
3 were subject to retaliation. Defendants' medical screening practices and policies were
4 intentionally cursory and lasted as little as one minute.

5 24. The communications between the Sheriff and CHS were minimal, strained,
6 and clearly not performed with the health of those incarcerated in mind.

7 25. During this time, McClurg was a pre-trial detainee. The Defendants
8 perpetrated a course of action that intentionally delayed McClurg's rights to a prompt
9 resolution of pending charges. Defendants' grossly negligent acts, caused horrific pain and
10 suffering, and far worse, a protracted and painful death for McClurg. *See* Maricopa County
11 Medical Records.

12 26. Maricopa County's jails had inadequate facilities and staffing. As a result,
13 the jail where McClurg was incarcerated did not provide available bunks, mattresses or any
14 seating for McClurg. Instead, McClurg was only provided with a temporary sleeping
15 "boat" bed on the cell floor in overcrowded conditions where there was no reasonable
16 access to a place to sit, stretch or even move about. *See Graves, infra*. These conditions
17 have been determined in multiple cases to violate pretrial detainees' and convicted
18 prisoners' rights under the substantive provisions of the Fourteenth Amendment. *See*
19 Maricopa County Medical Records.

20 27. McClurg notified Defendants' jail officials of his severe discomfort and
21 increasing pain; yet still he was required to follow protocols and procedures implemented
22 and designed by the Sheriff to delay and deny prisoners adequate medical treatment. This
23 policy of denying prisoners' rights under the Fourteenth Amendment could not be more
24 obvious or calculated, and the direct consequences could not be more obvious and
25 foreseeable. *See* Maricopa County Medical Records.

1 28. During the first six weeks of his custody, McClurg made numerous requests
2 to the Defendants' staff to be seen regarding his medical problems. McClurg repeatedly
3 asked for extra blankets, and he presented with loss of feeling in both legs, but was not
4 provided any medical treatment. The conditions McClurg was complaining of were all
5 symptoms of Leriche's Syndrome and were not correctly diagnosed until December 11,
6 2007 at Maricopa County Health Center ("MCHC"). Exhibit H, CHS0048, Maricopa
7 County Patient Intake of December 11, 2007.

8 29. McClurg was forced by Defendants to repeatedly fill out forms to request
9 medical treatment. These forms bore the internal form number CHM 3000 R3-03. See
10 Exhibits I, J, K, L, and M, CHS0184-88, McClurg's Inmate Medical Request Forms.

11 30. McClurg was given multiple Health Need Request forms (HNR), and filled
12 them out to seek treatment for his medical problems. However, these written requests
13 were ignored by Defendants. These HNRs included at least five different forms executed
14 by McClurg between late-October and early-December of 2007. See Exhibits I-M.

15 31. McClurg signed and submitted multiple HNRs provided and developed by
16 the Defendants. These forms were presented by McClurg and simply ignored.
17 Defendants' failure to act on the submitted HNR forms was clearly intentional. Defendants
18 failed to respond to McClurg's repeated requests to provide medical care. *Id.*

19 32. The forms themselves and Defendants' policies and practices of denying care
20 and delaying response to those repeated requests for treatment, violated McClurg's rights.
21 Grievances were discouraged by the Sheriff personally, and Correctional Health, and
22 Defendants' employees who did not discourage delivery of medical care to the inmates
23 were subject to retaliation. Defendants' medical screening practices and policies were
24 intentionally cursory and lasted as little as one minute.

25 33. Due to McClurg's deteriorating physical condition and pain, he was unable
26 to personally complete later forms requesting medical treatment.

1 34. After approximately six weeks of enduring confinement in the most horrific
2 conditions imposed by Defendants, which have previously been determined to violate
3 prisoners' Constitutional rights, and without access to any hard bed other than the sleeping
4 "boat" placed on the cell floor, McClurg's severe pain and debilitating medical conditions,
5 including those symptomatic of a Type II diabetic, as well as other diseases and
6 complications, were ignored and never diagnosed. See Medical Records of Maricopa
7 County

8 35. MIH Forms evidenced McClurg's medical condition at that time. *See*
9 Maricopa Medical Records, CHS 0048.

10 36. McClurg was unaware that he was suffering from diabetic symptoms or
11 Leriche's Syndrome until those conditions were ultimately diagnosed. Nor did McClurg
12 have any reason to know that he had such conditions. McClurg's diet before being
13 incarcerated allowed him to not have any issues that would have caused him concern.

14 37. The food provided to McClurg in jail was designed to be as inexpensive and
15 unpalatable as possible, and was fed not only to those convicted of crimes, but also to
16 detainees. It was provided to McClurg without any regard to his special and dietary needs.
17 The diet could not have been worse for the particular symptoms being presented by
18 McClurg to Defendants; symptoms that were obvious and called for immediate attention.

19 38. McClurg presented, upon initial screening at Maricopa County, as a person
20 in obvious need of special medical attention, but the screeners refused to acknowledge,
21 notice or take any action whatsoever. The screening was cursory, at best, and conducted
22 by persons with inadequate training and skill. There were insufficient numbers of staff in
23 order to perform sufficient screening of McClurg and others, and at this time lasted, in
24 many instances, less than one minute.

25 39. Despite receiving a so-called intake medical assessment, the placement and
26 housing of McClurg without bunk or mattress, instead offering him only the "boat" on the

1 floor of his cell, resulted in McClurg becoming totally bedfast and completely immobile.
2 There is no way this could have occurred but for the barbaric conditions designed,
3 implemented and practiced by Defendants.

4 40. Defendants' employees and detention officers consistently treated McClurg
5 as if he was a liar, feigning his bona fide symptoms in order to avoid court appearances
6 and/or get special privileges or care. That was false. This policy and practice was
7 encouraged by the Sheriff and those in Defendants' supervisory and other responsible
8 positions, including policy makers. A determination of the constitutionality of Defendant
9 Maricopa County's policies and procedures, some of which are attached as Exhibit N and
10 others have yet to be ascertained, must be made by the trier of fact.

11 41. The grossly negligent failure by Defendants to treat McClurg with dignity
12 and respect consistent with proper medical procedure and practice could have avoided
13 most of McClurg's suffering and pain, his multiple amputations, and prevented his
14 premature death. The policies and practices as formulated, implemented and budgeted by
15 the Sheriff's office and Maricopa County CHS did not allow for or countenance the
16 provision for proper medical care and screening commensurate with Constitutional and
17 federally determined standards.

18 42. Procedures and practices implemented by Defendants were inadequate and
19 precluded by express policies. Any defense of said policies and practices in this lawsuit by
20 the Sheriff and Maricopa County contravenes express decisions of the Federal District
21 Court in Arizona, as upheld by the Ninth Circuit Court of Appeals.

22 43. Despite receiving a so-called intake medical assessment, and despite a
23 minimal cursory physical exam as required by national standards and by *Hart v. Hill*, yet
24 conducted in a fashion that failed to comply with that legal precedent for standards, and
25 despite McClurg having repeatedly describing and complaining of his symptoms,
26

1 Defendants utterly failed to take any action to facilitate, in a timely fashion, adequate
2 medical treatment for McClurg.

3 44. The process of predetainee incarceration of McClurg, and his resulting
4 escalating and accelerating disease because of poor diet, living conditions and failure to
5 receive timely and adequate medical care, was both devastating and foreseeable. The
6 failure to provide transportation to McClurg occurred, and was known by the Sheriff and
7 Maricopa County CHS officials, in violation of McClurg's rights, thus facilitating his
8 illness, pain and suffering, and death. The timing, means and mode of transportation also
9 caused or facilitated McClurg's illness, his wholly preventable severe and debilitating pain
10 and suffering, and ultimately, McClurg's premature death.

11 45. The communications between the Sheriff's office and CHS were strained,
12 minimal and subject to political hostility that prevented cooperation.

13 46. The placement of McClurg into an overcrowded jail and his placement in a
14 "boat" bed which ultimately caused his skin to peel off when he was removed from the
15 "boat" and his feet to swell to the size of basketballs still did not result in adequate medical
16 treatment and ultimately ended McClurg's life.

17 47. On November 6, 2007, McClurg reported the loss of feeling in both of his
18 legs. These requests for medical attention were ignored by Defendants.

19 48. On November 6, 2007, a CHS employee noted that McClurg's main issue
20 revolved around the numbness in his legs and lack of mobility and difficulty walking. This
21 person requested that McClurg be moved to a medical pod and given the use of a
22 wheelchair. However, McClurg was not moved to a medical pod until February 18, 2008,
23 a delay of almost three and half months.

24 49. McClurg ultimately had become bedfast and completely immobile. He was
25 totally unable to get up from his "boat" bed assigned sleeping place on the jail floor. Jail
26

1 officials repeatedly and callously denied McClurg's request for reasonable medical
2 attention.

3 50. The denial of medical attention and Defendants' policies and practices were
4 contrary to the legal standards imposed upon Defendants in the case of *Hart v. Hill*, and
5 later *Graves v. Arpaio, infra*. Numerous other cases show repeat violations by Defendants,
6 and Plaintiffs may request portions of this body of evidence to be judicially noted at trial.

7 51. Later, McClurg became totally non-ambulatory and reported his severe pain
8 and loss of feeling in both of his legs to jail officials and Maricopa County health officials,
9 and yet no medical intervention occurred, including a transfer to a medical pod. Medical
10 requests from CHS were ignored by Defendants.

11 52. Maricopa County CHS employees and/or "providers" negligently failed or
12 refused to diagnose and/or treat McClurg's life threatening medical conditions. The
13 cursory medical assessment performed on McClurg on October 23, 2007 and Defendants'
14 failure to respond to and/or ignore severe medical symptoms and to refer McClurg to
15 health care providers, occurred on a repeated basis.

16 53. On November 26, 2007, a medical order form for McClurg identified orders
17 never followed nor implemented, including (1) "house in kinder environment"; (2) "If
18 possible, no leg chains"; (3) "OK to have wheelchair but only for transport"; (4) "extra
19 blanket"; and (5) "canvas shoes" *See* Maricopa County Medical Records. McClurg
20 received none of these in a timely fashion, if at all.

21 54. On November 26, 2007, McClurg was taken to CHS, who requested
22 McClurg be moved to a medical pod given his medical issues and need for the use of a
23 wheelchair. However, McClurg was not moved to a medical pod until February 19, 2008.

24 55. A November 26, 2007 medical report noted that McClurg had: a) foot drop,
25 b) dehydration, c) pain, d) has trouble walking (CHS 0018), e) fell in Court today, f) fell
26

1 settling into transport, and g) reports pain hips and leg. *See* Maricopa County Medical
2 Records.

3 56. On November 6, 2007, the staff at the MCCHS wrote that McClurg's main
4 issues revolved around the "numbness in his legs and lack of mobility/difficulty walking."
5 This person requested that McClurg be moved to a medical pod given his "medical issues"
6 and be given the use of a wheelchair.

7 57. However, McClurg was not moved to a medical pod until February 19, 2008,
8 over three months later. During this time, McClurg continued to submit several written
9 inmate medical request forms, which resulted in no meaningful action or proper medical
10 care by Defendants.

11 58. It was only because McClurg fell from a bunk and suffered a laceration on
12 December 10, 2007 that he was taken to the Maricopa County Medical Center on
13 December 11, 2007. Even then, McClurg would not be placed in a medical pod until
14 February 19, 2008, more than three months after the medical staff at MCCHS
15 recommended he be placed in a medical pod.

16 59. On December 11, 2007, McClurg was finally transported by Defendants'
17 correctional staff to be seen by medical providers in the jail, who then ordered McClurg's
18 transport to Maricopa County Medical Center (MCMC) Emergency Room. This necessary
19 event by itself constitutes evidence of Defendants' of liability.

20 60. At MCMC, McClurg was diagnosed to be an "undiagnosed Type II
21 Diabetic" in circulatory crisis. A bypass was done to restore circulation to the lower
22 extremities, and the obvious and horrific gangrenous wounds on McClurg's buttocks were
23 debrided.

24 61. As this medical crisis continued over the intervening period of days,
25 eventually four toes on McClurg's left foot were surgically removed, as were three toes on
26 McClurg's right foot, and the gangrene on McClurg's buttocks was abated.

1 62. Wound care on McClurg's feet and buttocks continued for three months. The
2 obvious and untreated conditions that preceded McClurg's health crisis and ultimately his
3 death were so grossly negligent as to trigger a thorough investigation into the conduct of
4 those personally responsible for the death of McClurg.

5 63. On November 30, 2007, McClurg filled out another inmate medical request.
6 He wrote "I am having painful swelling in my ankles and feet. I have also had occasional
7 chest pains. I have had a stroke in the past and I am quite concerned. Other symptoms
8 have been nausea, sweats, and rapid breathing." The response written was "you are
9 scheduled to be seen."

10 64. On December 4, 2007, McClurg submits another inmate medical request
11 form that reads, "I need to see the DR about the pain in ankles and the swelling in my feet
12 and legs I can't even walk or stand up long enough to take a shower or move around freely
13 please help ASAP thank you. I haven't received any meds for pain." The response was
14 "already scheduled for sick call."

15 65. On December 11, 2007, McClurg was brought wheeled to MCMC by
16 detention, and he was described as unable to care for himself. (CHS0021) McClurg
17 reported his pain level as "10" on a scale of 1 to 10, with 10 being the most severe pain, at
18 that time. *See* Maricopa County Medical Records.

19 66. Not until December 11, 2007 was McClurg provided any meaningful
20 medical attention. On or about that time, he presented such severe symptoms that they
21 could not be denied as his medical situation had become life threatening. McClurg was
22 transported in inappropriate, offensive and non-medically appropriate transportation to the
23 MCMC emergency room. The December 11, 2007 Internal Medicine evaluation of
24 McClurg lists "critical"; "aggressive fluid hydration"; "stat on demeclocyclin 300 mg. PO
25 of 8 hrs. *See* Maricopa County Medical Records.

1 67. At the MCMC, McClurg was diagnosed as having been in an undiagnosed
2 Type II circulatory crisis. Surgical intervention was required to restore circulation to his
3 lower extremities. Seven of McClurg's toes were amputated and severe obvious gangrene
4 wounds on McClurg's buttocks were debrided. McClurg's medical condition was so
5 severe and so obvious, and so gross, that the failure to be recognized and responded to
6 constitutes Defendants' gross negligence, reckless indifference and clear violation of
7 McClurg's Constitutional rights.

8 68. It was not until December 11, 2007, that McClurg was finally transported to
9 MCMC. From the time McClurg walked into the Maricopa County jail on October 27,
10 2007, Defendants took away his mobility, his future to work, and live independently and
11 caused him severe and horrific continuing pain and suffering, and subjected him to
12 multiple surgeries where he lost toes on both feet, exposed his buttocks to gangrene, had
13 both legs amputated, and ultimately ended McClurg's life.

14 69. McClurg's medical condition was so debilitating by the time he finally
15 received medical treatment at MCMC, seven weeks after his incarceration, that not only
16 his limbs but also many organs were at risk. During this period of incarceration,
17 McClurg's blood became so thick that his vessels became flaccid, resulting in significant
18 long term consequences.

19 70. Besides the loss of seven toes during the first week of hospitalization,
20 McClurg remained hospitalized even after his sentencing in February 2008, subsequently
21 suffering below the knee amputation of his left leg, myocardial infarction in July 2008, and
22 then resided in a nursing home requiring skilled nursing and assistance with daily living.
23 McClurg's immune, circulatory, and respiratory systems were permanently compromised
24 due to the conditions and care during his incarceration.

25 71. McClurg's medical condition after incarceration became so severe that his
26 lower extremities and internal organs were compromised. Further, McClurg's blood

1 became so thick and his blood vessels so flaccid that he was medically determined to
2 require long term care.

3 72. On January 4, 2008, the medical report for McClurg notes "gangrene L foot;
4 L foot amputation; previous level of function limited mobility 2° to R foot pain; home
5 environment/social history incarcerated – jail."

6 73. McClurg remained hospitalized after he was sentenced for his DUI related
7 offense in February of 2008. He subsequently suffered below the knee amputation on his
8 left leg in July, 2008. The cause or a contributing cause of these events was the
9 foreseeable consequences directly attributable to Defendants' failure to provide adequate
10 and timely medical care to McClurg. See Maricopa County and Yavapai County medical
11 records and forms prepared and filled out by McClurg. See Yavapai County Medical
12 Records.

13 74. The above described failures of the Sheriff and Maricopa County CHS staff
14 employees establish that the denial of medical care in a timely fashion violated McClurg's
15 constitutional rights under the Fourteenth Amendment.

16 75. Maricopa County's actions and failure to act were grossly negligent and
17 constituted callous indifference.

18 76. Maricopa County's and the Sheriff's employees failed to develop, initiate and
19 follow standard protocols, including those already in place to apply to persons either
20 diabetic or presenting disease symptoms, which were not followed. These protocols
21 included blood sugar monitoring, provision of a low carb, diabetic diet, and canvas shoes.
22 None of the above was provided.

23 77. No precautions were taken to protect McClurg from the severe neuropathic
24 damage he suffered which was plain and obvious to any person as it increased.

25 78. When McClurg first arrived at MCCHS on October 27, 2007, he walked into
26 the facility without difficulty. Indeed, his health screening on his admission stated that he

1 “appeared healthy, with a BP of 154/70.” McClurg had all of his toes, his feet and his legs
2 at that time. Within a period of months, McClurg would have endured amputations of toes
3 on both feet, and both legs. *See* Maricopa County Medical Records.

4 79. While McClurg walked into Defendants’ facilities without difficulty on
5 October 23, 2007, that was followed by numerous written requests in McClurg’s own
6 words of his obvious medical symptoms and difficulties, which Defendants ignored until
7 he became completely immobile and in constant severe pain.

8 80. In simple terms, McClurg walked into Defendants’ care and custody on
9 October 27, 2007. By the time he left their custody on February 24, 2008, multiple toes on
10 both feet had been amputated, as were both legs. McClurg’s extreme pain and suffering is
11 presumed by law in these circumstances, and documented in both his words and in the
12 written records of Defendants’ medical personnel, including those who were completely
13 indifferent to his suffering.

14 81. The Sheriff’s and Maricopa County’s grossly negligent and callous,
15 indifferent treatment escalated McClurg’s severe disease process. This contributed to and
16 was, a proximate cause of McClurg’s pain, suffering which necessitated multiple
17 amputations.

18 82. The contrast between the treatment McClurg received initially by Yavapai
19 County and the subsequent treatment, or lack thereof, provided by Maricopa County,
20 which caused McClurg’s extended and painful suffering, and ultimate death, is obvious
21 and shocking.

22 83. The failure of Maricopa County and the Sheriff was a proximate cause of
23 McClurg’s horrific pain and suffering, multiple amputations and later McClurg’s eventual
24 death. The exact ultimate cause of death or means of death in no way detracts from this
25 obvious conclusion.

1 84. On August 2, 2008, while McClurg was still alive, based upon facts directly
2 provided by McClurg, a Notice of Claim against the Sheriff and Maricopa County was
3 filed. The Claim detailed specific facts specifying the conditions he endured. All of the
4 above facts and circumstances were included in McClurg's personally approved Notice of
5 Claim and based upon his own factual descriptions contained in the August 8, 2008 Notice
6 of Claim. See attached herewith as Exhibit O.

7 85. No response to McClurg's August 8, 2008 Notice of Claim regarding
8 McClurg by either Maricopa County or Sheriff was ever made. *See* Exhibit O. Failure to
9 respond to the Notice of Claim itself violated the obligations of the office not only to
10 McClurg, and his estate and heirs, but also to the citizens and taxpayers of Maricopa
11 County.

12 86. Maricopa County CHS was required to investigate the allegations of callous
13 indifference and negligent care of McClurg causing death. Confidential reports,
14 notwithstanding, have never been provided. Subsequent to the events and course of
15 conduct described above, McClurg died on September 24, 2008, after suffering horrific
16 pain months of his life.

17 87. Subsequent to the above, Elijah McClurg, and his mother and younger
18 brother, a minor, L. McClurg, determined that through Elijah McClurg, on behalf of the
19 Estate, a continuation of the actions seeking damages would be pursued. *See* Depositions
20 of Elijah McClurg and Cindy McClurg.

21 88. McClurg died on September 24, 2008, after submitting his own Notice of
22 Claim on August 8, 2008. This matter could have been avoided by proper medical care
23 which would have only cost a small fraction of the amounts of damages now sought and to
24 which Plaintiffs are entitled. The damages include those not only suffered by Plaintiff's
25 heirs, but those also that are brought to recover for McClurg's pain and suffering prior to
26 his death.

89. Reasonable persons under the same circumstances would have determined early on that McClurg was in need of a diabetic diet; that McClurg's multiple health complaints to various MCSO agents were serious and required immediate medical attention; that McClurg had symptoms that would lead reasonable persons, even those not medically trained, to believe that he was in dire need of immediate and proper medical attention.

90. Defendants' handling and transport of McClurg, including the injuries and falls he sustained, his placement in an unconstitutional "boat bed," and the lack of adequate medical records management, constitute gross negligence.

91. Defendant Maricopa County and its employees breached their duties due to McClurg by, among other things, failing to have McClurg medically evaluated before his admission to the County Jail; failing to provide a diabetic diet to McClurg; failing to appropriately and timely recognize clear signs that McClurg was in need of immediate medical attention; unreasonable and inadequate supervision of MCSO and CHS employees; and implementing, utilizing, or permitting unreasonably dangerous policies, practices, customs, and inadequate training of MCSO and CHS employees concerning, among other things, assessing detainees upon admission to jail, and supervising and providing medical care to detainees.

RESPECTFULLY SUBMITTED this 23rd day of February, 2012.

LAW OFFICE OF GARY L. LASSEN, PLC

By: /s/ Gary L. Lassen

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1 I hereby certify that on the 23rd day of
2 February, 2012, I electronically transmitted
3 the foregoing document to the Clerk's Office
4 using the CM/ECF System for filing.

5 A copy of the foregoing document mailed
6 this 23rd day of February, 2012 to:

7 Michelle H. Burns, U.S. Magistrate Judge
8 U.S. District Court for the District of Arizona
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10 Phoenix, AZ 85003

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26